

Before the
FEDERAL MARITIME COMMISSION

Docket No. 22-21

MRSF, Inc.
v.
YANG MING MARINE TRANSPORT CORPORATION

**RESPONDENT’S RESPONSE TO COMPLAINANT’S MOTION FOR
ENLARGEMENT OF TIME TO FILE REPLY BRIEF**

Respondent Yang Ming Marine Transport Corporation (“Respondent” or “Yang Ming”) responds to Complainant’s above-captioned Motion served June 21, 2023. For the reasons set forth below, Respondent opposes the requested extension. We file our response early, rather than on the due date set by the Commission’s Rule 71, 46 C.F.R. 502.71, to afford the Presiding Officer an opportunity to rule before the current due date for Complainant’s reply (June 28, 2023).

Respondent contacted us on June 21 seeking our consent to its Motion. Normally, we would, as a matter of professional courtesy, grant consent to any reasonable request for extension, as we have throughout the course of this proceeding. We do not consent here, however, because this appears to be just another attempt by Complainant to game the system.

Without rehashing the details, Complainant has repeatedly ignored both the FMC’s Rules of Practice and Procedure and the orders of the Presiding Officer. This includes disobedience to the Presiding Officer’s Order to Correct Filings (May 30, 2023) which required Complainant to provide legible, exhibits, without any supplementation.

Complainant's request for additional time is, as forecast in Respondent's Opposition Brief, nothing more than an attempt to "sandbag" Respondent. As previously addressed there, Complainant's opening brief was a mere five pages and did not address a single Shipping Act argument or cite a single FMC decision concerning the Shipping Act. Now, of course, Complainant wants time to prepare a more fulsome brief, to which Respondent will not have a right to reply. Such sandbagging is, as we have previously shown, uniformly condemned by the courts. Complainant also asks the Commission to violate both Due Process and the Administrative Procedure Act, denying Respondent an opportunity to rebut Complainant's arguments and perhaps facts.

As also addressed in Respondent's Opposition Brief, Complainant has engaged in the same sandbagging in Docket No. 22-20, *MSRF, Inc. v. HMM Co., Ltd.*, where Complainant was forced to concede that the respondent should be given a right to reply. That same right would necessarily apply here.

We do not believe that allowing Respondent to file a sur-reply is an appropriate remedy for Complainant's improper behavior. Why not sandbag if the worst that can happen is that the opponent will get a right to reply? As the cases cited in the Opposition Brief explain, the appropriate relief is not to allow such arguments in a reply brief.

Moreover, as a practical matter, it would appear impossible for the Presiding Officer to grant the extension and still meet the Commission-imposed deadline of August 19, 2023 to issue her Initial Decision. The extension by itself will mean briefing is not final until just one month before the Initial Decision is due. But that, of course, will not be the end of it. Filing of a sandbagging reply will inevitably be followed by a motion from Respondent to strike or allow Respondent adequate time to reply (as well as raising an issue for exceptions and the courts of

appeals). That would likely take the briefing up to, or almost up to, the Presiding Officer's due date.

Nor does Complainant establish good cause for the requested extension that more than doubles its original time. It first points to the fact that Respondent's Opposition Brief is long. Of course it is. The Complaint alleged five counts (two since abandoned), as well as a request for substantial reparations, each of which raises both legal and factual issues. The question is not why Respondent's brief is long, but rather why Complainant's Opening Brief is so devoid of content.

Second, Complainant's Counsel claims that it cannot find cases cited to the Shipping & Regulatory Reporter (S.R.R.), even though S.R.R. is one of the Commission's official reporters and was specified by the Presiding Officer. Initial Order at 2 (August 22, 2022). That is, for the most part, simply untrue. We today confirmed that all but four of the opinions in Respondent's Opposition Brief are available on Lexis (which we assume must also be available to Complainant's law firm) or on the FMC website (FMC Reports). Complainant's Counsel can thus access the vast majority of FMC cases without even leaving their offices.

As to the four remaining FMC cases not on either of those sources, we attach copies in the format in which they appear in S.R.R. (Exhibits attached herewith). That way, we spare Complainant's counsel the minor inconvenience of sending a messenger to the FMC to copy the four cases.

Although Respondent believes that the extension request should be denied, if the Presiding Officer is inclined to grant some time, we suggest an extension of 7, not 21, days. That

should allow Complainant time to find the cases clearly available to it and review the four attached cases, rather than profit from its sandbagging.

For the foregoing reasons, Respondent opposes the requested extension, or in the alternative proposes that it be limited to seven days.

Dated: June 22, 2023

Respectfully submitted,

By: /s/ Rebecca A. Fenneman

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CERTIFICATE OF SERVICE

I certify that on the 22nd day of June, 2023, a true and correct copy of the foregoing document was served by electronic mail on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020 as follows:

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